26NNCV01844 26NNCV01844

County: los-angeles

Division: Civil Law and Motion

Department: X

Hearing date: 2026-07-22

Source URL:
https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ALH%2CX%2C07%2F22%2F2026

Source SHA-256: 2d42891f358d3ee5fc6f5761d5da395159fc8fdd9c6ccf16becf770a8c1a8564

Case Number: 26NNCV01844 Hearing Date: July 22, 2026 Dept: X

ERIC BRAKEBILL JONES vs KATHY HART

MOTION FOR JUDGMENT
ON THE PLEADINGS (1385)

Defendant Kathy Hart moves for judgment on the pleadings as to every cause of action in the complaint.

The complaint asserts six causes of action labeled fraud and deceit, breach of contract, common counts, conversion, bank fraud/intentional interference, and intentional infliction of emotional distress. The complaint alleges, among other things, that Jones traveled to Texas at Hart's request, paid a replacement caretaker from his own funds, created digital accounts and infrastructure for Hart's benefit, and later suffered a compliance hold on $567.54 after Hart allegedly submitted false fraud reports to JPMorgan Chase. (Compl., ¶¶ 2, 4-6.) The prayer seeks $19,422.54 for services, $75,000.00 for business loss, $567.54 in converted funds, and $21,000.00 for punitive or emotional-distress damages.

Tentative Ruling

The motion for judgment on the pleadings is GRANTED in part as to the first, second, fourth, fifth, and sixth causes of action, and DENIED as to the third cause of action. Leave to amend is denied as to the fourth cause of action for conversion and fifth cause of action for bank fraud / intentional interference.

Plaintiff shall have 30 days from service of notice of entry of this order to file and serve a First Amended Complaint limited to the first, second, and sixth causes of action for which leave to amend is granted.

Legal Authority and Analysis

A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired. Except as provided by statute, the rules governing demurrers apply. (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999.) “A motion for judgment on the pleadings is akin to a general demurrer; it tests the sufficiency of the complaint to state a cause of action. The court must assume the truth of all factual allegations in the complaint, along with matters subject to judicial notice.” (Wise v. Pacific Gas and Elec. Co. (2005) 132 Cal.App.4th 725, 738, citations omitted.) Further, like a general demurrer, a motion for judgment on the pleadings “does not lie as to a portion of a cause of action, and if any part of a cause of action is properly pleaded, the [motion] will be overruled.” (Fire Ins. Exchange v. Superior Court (2004) 116 Cal.App.4th 446, 452.)

Jones’s opposition argues that the Court must disregard the motion’s factual counter-narrative because it does not appear on the face of the complaint and is not the subject of judicial notice. Jones further argues that, if the Court finds defects, leave to amend should be granted on this first challenge to the original complaint. In reply, Hart agrees the motion is decided on the face of the complaint and judicially noticeable matters, argues the complaint still fails as pleaded, and contends leave to amend should be denied at least as to the fourth and fifth causes of action.

First Cause of Action: Fraud and Deceit

“Under Civil Code section 1709, one is liable for fraudulent deceit if he deceives another with intent to induce him to alter his position to his injury or risk.... (Civ. Code, § 1709.)” (Beckwith v. Dahl (2012) 205 Cal.App.4th 1039, 1059–1060 (“Beckwith”) [internal quotations omitted].) Deceit for the purposes of Civil Code section 1709 means “[a] promise, made without any intention of performing it. (Civ. Code, § 1710.)” (Beckwith, supra, 205 Cal.App.4th at p. 1060 [internal quotations omitted].) “The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or scienter); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage. [Citations.] [Citation.] Each element must be alleged with particularity.” (Beckwith, supra, 205 Cal.App.4th at p. 1060 [internal quotations omitted].) “[Fraud’s] particularity requirement necessitates pleading facts which ‘show how, when, where, to whom, and by what means the representations were tendered.’ [Citation.]” (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73.)

The complaint alleges that Hart made an “urgent request” for Jones to travel to Texas and “fraudulently concealed her medical timeline,” including an undisclosed second surgery and extended rehabilitation, in order to trap him in Texas as an unpaid caretaker. However, on the face of the pleading,, the claim does not identify the specific statement or omission, when or how it was made, or facts showing reliance and resulting damage tied to the alleged fraud. The first cause of action, therefore, fails as pleaded. Leave to amend is granted where Jones seeks to add new facts to attempt to cure this count.

Second Cause of Action: Breach of Contract

To plead breach of contract, a complaint must allege facts showing (1) the existence of a contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) resulting damages to plaintiff. (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.) Here, the complaint seeks service damages and business-loss damages, but it does not allege contract formation, the essential terms of any agreement, Jones’s performance under identified contractual terms, or a specific contractual breach by Hart. The second cause of action therefore fails as pleaded. Leave to amend is granted, however.

Third Cause of Action: Common Counts

“In the common law action of general assumpsit, it is customary to plead an indebtedness using ‘common counts.’ In California, it has long been settled the allegation of claims using common counts is good against special or general demurrers. The only essential allegations of a common count are ‘(1) the statement of indebtedness in a certain sum, (2) the consideration, i.e., goods sold, work done, etc., and (3) nonpayment.’” (Farmers Insurance Exchange v. Zerin (1997) 53 Cal.App.4th 445, 460, internal citations omitted.)

Applying that standard, the complaint is sufficient at the pleading stage. Jones alleges that he traveled to Texas at Hart’s urgent request to provide emergency caretaking and IT security services, that Hart claimed inability to access funds and coerced him to pay replacement caretaker Amy McCellon via Venmo from his personal funds, and that Hart failed to reimburse those advances. The complaint also seeks $19,422.54 for "Services." Those allegations identify an asserted indebtedness in a certain sum, consideration in the form of work done and funds advanced for Hart's benefit, and nonpayment.

Hart's motion argues the complaint does not plead additional detail such as the exact amount of the advances, an agreement to reimburse, or a demand and refusal. But under Farmers Insurance Exchange, those matters are not essential allegations of a common count. The motion for judgment on the pleadings is denied as to the third cause of action.

Fourth Cause of Action: Conversion

"Conversion is the wrongful exercise of dominion over the property of another." (Hernandez v. Lopez (2009) 180 Cal.App.4th 932, 939.) The elements of a conversion claim are: (1) the plaintiff's ownership or right to possession of the property; (2) the defendant's conversion by a wrongful act or disposition of property rights; and (3) damages. (Lee v. Hanley (2015) 61 Cal.4th 1225, 1240.) "[C]onversion is a strict liability tort. It does not require bad faith, knowledge, or even negligence; it requires only that the defendant have intentionally done the act depriving the plaintiff of his or her rightful possession." (Voris v. Lampert (2019) 7 Cal.5th 1141, 1158.)

The complaint's conversion theory is based principally on allegations that Jones secured Hart's digital infrastructure, created accounts including "," retained counsel for her benefit, and that Hart uses " 'Project Hydra' IP without compensation." Those allegations describe services, alleged intangible interests, and nonpayment, not Hart's wrongful exercise of dominion over specifically identified property as pleaded.

Jones's proposed cure, as stated in the opposition, is only to "conform" the count to the $567.54 hold. On this record, that proposed amendment would not cure the defect. The fourth cause of action fails as a matter of law on the facts Jones has identified. Leave to amend is denied.

Fifth Cause of Action: Bank Fraud / Intentional Interference

The complaint labels the fifth cause of action “Bank Fraud / Intentional Interference” and alleges that, on or about February 2, 2026, Hart submitted false fraud reports to JPMorgan Chase concerning authorized transfers to Austin Bank despite a prior voicemail directing Jones to make those transfers. California does not recognize an independent civil cause of action labeled “bank fraud,” and Jones’s opposition appears to concede as much by seeking, at most, to re-caption the claim as one for intentional interference. However, re-labeling does not solve the pleading problem.

The elements of an intentional interference with contract cause of action are: (1) a valid contract between plaintiff and a third party, (2) defendant’s knowledge of such contract, (3) defendant’s intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship and (5) resulting damage. (Pacific Gas & Electric Co. (1990) 50 Cal.3d 1118, 1126.) The complaint does not plead that theory with sufficient facts. It does not identify the contractual or economic relationship with adequate clarity, and it relies on conclusory labels such as “maliciously,” “false,” and “perjury” rather than well-pleaded supporting facts. Because the only proposed cure shown in the present record is re-labeling the count, the Court finds Jones has not shown a reasonable possibility of amendment. Leave to amend is denied.

Sixth Cause of Action: Intentional Infliction of Emotional Distress

A sixth cause of action for “INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS (IIED)” is named in the first page of the complaint. The complaint alleges that Hart’s fraud reports triggered a compliance hold and caused “severe operational distress,” and the prayer seeks “Punitive/Emotional Distress” damages. However, the complaint does not plead any more facts or causes of action beyond the fifth cause of action. Thus, there are no facts showing severe emotional distress with adequate specificity. Jones’ opposition specifically proffers amendment alleging the severe emotional distress he claims to have suffered and its physical and functional manifestations. That proffer is sufficient to justify leave to amend. The sixth cause of action fails as pleaded, but leave to amend is granted.

Moving Party is to give notice.